Newanforbi v. HOPE re Meet and Confer 3:26-cv-07504 (N.D. Cal.)

Blaze Van Dine <blaze@sims-law.net> Thu, Sep 3, 2026 at 2:40 PM
To: Brendan Ngwa Nforbi <bnn.cdl@gmail.com>
Cc: Eric Martinez <emartinez@sims-law.net>, Kim Schmitt <kschmitt@sims-law.net>, June Meinecke <june@sims-law.net>

Good afternoon Mr. Newanforbi,

I am writing to request to meet and confer prior to moving to dismiss the complaint filed in this action pursuant to Federal Rule of Civil Procedure 12(b)(6). The complaint alleges that Defendants Hope and Shannon Smith have implemented and maintained a blanket policy under which no parolee can ever be found to have completed Hope's sex offender management program prior to discharge from parole. The complaint further alleges that Defendants have submitted false reports to CDCR, recommended you remain in Hope's program, and that a Hope employee made retaliatory statements after you complained about Hope's practices. Based on these allegations, the complaint alleges five claims: (1) 42 U.S.C. § 1983-Individual Capacity; (2) 42 U.S.C. § 1983-Monell Liability; (3) California Civil Code Section 52.1 (Bane Act); (4) Fraud and Negligent Misrepresentation; and (5) 18 U.S.C. Section 1962(c)-(d) (RICO).

These claims are subject to dismissal for several reasons. First, prior to commencing this case in the Northern District of California, you filed an action in state court that was based on the same factual allegations. Because the state court action was resolved on the merits and in Defendants' favor, you are precluded from litigating each of the complaint's claims under the doctrine of res judicata (also referred to as preclusion).

Additionally, the complaint's factual allegations are insufficient to state a claim for relief. In that regard, the complaint fails to state a section 1983 claim because it does not establish that Defendants were state actors. The First Amended retaliation claim is also deficient because the allegations do not demonstrate that Defendants' actions would "chill a person of ordinary firmness" from continuing to engage in protective activity or that there was any intent to chill speech. *Az. Students' Ass. v. Ariz. Bd. of Regents*, 824 F.3d 858, 867 (9th Cir. 2016). The complaint's allegations also fail to state a due process claim because it does not sufficiently allege a deprivation of a liberty interest or an absence of procedural safeguards. *Kildare v. Saenz*, 325 F.3d 1078, 1085 (9th Cir. 2003). With respect to the Bane Act claim, the allegations are insufficient to establish that Defendants interfered with a constitutional or statutory right by threat, intimidation, or coercion. Cal. Civ. Code § 52.1. The complaint also fails to state a claim for either fraud or negligent misrepresentation because it does not allege justifiable reliance or an intent to defraud or induce reliance. *See DZ Reserve v. Meta Platforms, Inc.*, 96 F.4th 1223, 1233 (9th Cir. 2024*); Zetz v. Boston Scientific Corp.*, 398 F. Supp. 3d 700, 713 (E.D. Cal. 2019). Lastly, the complaint's allegations are insufficient to state a civil RICO claim. The complaint

provides only conclusory allegations related to the alleged predicate acts—mail fraud, wire fraud, and obstruction—without providing the specificity required by Rule 8 and Rule 9(b). *See Schreiber Distrib. Co. v. Serv-Well Furniture Co.*, 806 F.2d 1393, 1400-01 (9th Cir. 2004).

Given these deficiencies, I intend to file a motion to dismiss the complaint. Please respond by agreeing to dismiss this action or provide available dates to meet and confer on or before **September 10, 2026.** Thank you in advance for your cooperation.

Blaze Van Dine

Attorney at Law

1478 Stone Point Drive, Suite 450
Roseville, CA 95661
(916) 797-8881 F: (916) 253-1544
www.sims-law.net

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